TENTATIVE RULINGS

LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: July 30, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at **https://www.occourts.org/media-relations/civil.html** before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**.

Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	**Caminos vs. Mercedes-Benz USA, LLC** **2025-01502571**	**Motion for Judgment on the Pleadings** Defendant Fletcher Jones Motor Cars dba Fletcher Jones Motocars of Newport Beach's motion for judgment on the pleadings is GRANTED, with 10 days leave to amend. (See Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) The allegations of the complaint do not affirmatively or conclusively show that the third cause of action for negligent repair is barred by the economic loss rule. The economic loss rule has two branches. First, it provides that there is no general duty to avoid the infliction of economic losses, meaning there can be no negligence claim for such losses (no duty, no negligence). (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) This "no general duty" rule does not apply here because the Song-Beverly Act specifically imposes a statutory duty on those who service or repair consumer goods to do so in a "good and workmanlike manner, which establishes the existence of the alleged duty of care as a matter of law. (Civ. Code, § 1796.5; see Compl. ¶¶ 50-51.) As for the second branch, it provides that where the parties have a pre-existing contractual relationship, their obligations and potential recovery are defined by the terms of the contract under contract law, rather than tort law. (*Sheen*, at pp. 922-924.) But this latter branch assumes and requires the existence of a contract between the parties (*id.* at pp. 922-923; *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21, 26, 36, 43, 44 & fns. 11, 13), and the complaint does not allege the existence of any such contract or warranty between plaintiff Daniel Edwin Caminos and Fletcher Jones at any time. (See, e.g., Compl. ¶¶ 5, 9.) That said, the complaint fails to state facts sufficient to constitute a cause of action for negligent repair. (See *Conroy v. Regents of University of California* (2009) 45 Cal.4th 1244, 1250 [negligence elements].) While a company "which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner" (Civ. Code, § 1796.5), the complaint does not allege that Fletcher Jones was engaged in such a business. The complaint further fails to allege facts sufficient to establish breach. The only allegation of breach directed at Fletcher Jones consists of a mere conclusion of law, which is insufficient. (See Code Civ. Proc., § 425.10, subd. (a)(1) [a complaint "shall contain" a "statement of the *facts* constituting the cause of action, in ordinary and concise language"]; *Pang v. Beverly Hosp., Inc.* (2000) 79 Cal.App.4th 986, 989 [on a motion for judgment on the pleadings, all properly pleaded material facts are deemed true, "but not

		contentions, deductions, or conclusions of fact or law"]; see also Compl. ¶ 52 [legal conclusion]; *id.* ¶¶ 12-15, 28-29 [discussing repairs at unidentified repair facility(ies)].) Defendant shall give notice.
2	**Dominguez vs. Ted Jones Ford, Inc.** **2023-01306689**	**Motion for Attorney Fees** Plaintiff Kelvin Dominquez's Motion for Attorney Fees is GRANTED in part. <u>Prevailing Party:</u> Attorney's fees are authorized by contract, statute, or law. (See C.C.P. section 1033.5(a)(10)(A),(B) & (C).) The Song-Beverly Act, popularly known as the automobile "lemon law," authorizes fees "reasonably incurred by the buyer". Civil Code section 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Plaintiff accepted Defendant Ford's Offer to Plaintiff to Compromise pursuant to Code of Civil Procedure section 998. (Kirnos Decl. ¶ 33, Ex. C) Pursuant to the 998 offer Ford agreed that Plaintiff was the prevailing party and entitled to attorneys' fees, costs, and expenses pursuant to the Song-Beverly Act. (Ibid.) Therefore, Plaintiff is the prevailing party entitled to attorney fees. <u>Amount of Attorneys' Fees</u>: "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) "The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Ibid. (citation omitted).) "As the plain wording of section 1794, subdivision (d) makes clear, the trial court is to base the fee award upon actual time

		expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. In the case of contingency fee arrangements, a prevailing buyer ... is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorneys. [¶] Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then 'ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were ... reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 (cleaned up).) Plaintiff Kelvin Rodriguez seeks attorney fees, costs, and expenses in the total amount of $21,478.13, consisting of (1) $14,982 in unadorned attorney fees; (2) a 1.2 multiplier resulting in an additional $3,494.53; and (3) $ 3,495.53 in costs and expenses. Ford contends the rates are excessive and not consistent with prevailing community rates. The court does not find the hourly rates to be excessive, but the 10 timekeepers on the case is unreasonable for a simple lemon law case. In Song-Beverly cases, a court can "reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (*Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 39-40.) Factors a court may consider in its reductions include "the rates based on its finding that the matter was not complex; that it did not go to trial; that the name partners were doing work that could have been done by lower billing attorneys; and that all the attorneys were doing work that could have been done by paralegals." (*Ibid.*) Based on these considerations, the court cut six attorneys' hours entirely for necessary tasks. The court stated it could have made an across-the-board reduction of 30 percent to accomplish the same purpose as reducing the total award to a reasonable amount that would have been billed had there been an appropriate number of attorneys on the case. (*Ibid.*)

		The court will apply an across the board 10% reduction of Plaintiff's counsels' total time instead of cutting the attorney's hourly rates. <u>Number of Hours Billed</u> Ford challenges the total number of billable hours claimed by Plaintiff's attorneys for specific tasks. The complaint included one cause of action for negligent repair against defendant Keny Grody. Plaintiff is only entitled to fees on causes of action relating to their Song-Beverly Act claims. While in certain cases it may be difficult to apportion the work performed to specific claims, in this case, the entries flagged by Ford are easily separated from the remaining claims. Ken Grody Ford (Grody) filed a demurrer to challenge the third cause of action for negligent repair (ROA 26). On March 28, 2023, Plaintiff's counsel billed to exchange email correspondence with Defendant regarding meet and confer efforts on Grody's demurrer to the negligent repair cause of action. (Kirnos Decl., Ex. A.) On July 28, 2023, Plaintiff also billed to review Grody's demurrer and draft an opposition. On August 16, 2023, and August 17, 2023, Plaintiff billed to review the tentative ruling as well as to prepare for, attend, and draft results of the hearing on this same demurrer. (Kirnos Decl., Ex. A.) The total amount of hours billed was 1.5 hours or $562.50 relating only to Plaintiff's negligent repair cause of action. This billing should be excluded entirely, as work does not pertain to Plaintiff's Song-Beverly claims. The court will reduce the attorney's fees request by $562.50. As for other objections by Ford regarding the use of templates, excessive hours for the instant motion, and the billing for clerical/administrative tasks, the court finds the billing to be reasonable. <u>Multiplier to the Lodestar:</u> "The Supreme Court has 'set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award." ' " (*Mikhaeilpoor*, supra, 48 Cal.App.5th at 248.) "The trial court is

		neither foreclosed from, nor required to, award a multiplier." (*Mikhaeilpoor*, at p. 247.) Plaintiffs seek a 1.35 multiplier on the attorney fees. A multiplier to the lodestar is not warranted. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Further, the availability of statutory fees for Song-Beverly cases significantly reduced the risk associated with working on contingency. (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1174-1175 [FEHA fees award].) Accordingly, the request for a multiplier is DENIED. Plaintiff's Motion is GRANTED in part. Plaintiff is awarded **$12,977.55** in attorney's fees. The court calculates this as follows: $14,982 - $562.50 = $14,419.50 - a 10% overall deduction, or $1,441.95, for a total of $12,977.55. <u>Costs</u> In addition to attorney fees, Plaintiff seeks $3,495.53 in costs. "Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3)." (CRC, Rule 3.1700(b)(1).) The parties may agree to extend the time to file a motion to strike or tax costs, but this agreement must be confirmed in writing. (CRC, Rule 3.1700(b)(3).) "After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment." (CRC, Rule 3.1700(b)(4).) Plaintiff filed his Memorandum of Costs on February 23, 2026. Ford did not file a motion to strike or tax costs, and only filed an opposition to the attorney fee/cost motion on July 16, 2026. The opposition was filed more than 15 days after the filing of the Memorandum of Costs and there is no apparent written agreement to extend the time to file a motion to strike or tax costs. (*Douglas v. Willis* (1994) 27 Cal.App.4th 287, 289 ["The 'failure to file a motion to tax costs constitutes a waiver of the right to object.'"].) Therefore, by failing to file a timely motion to tax costs, Ford has waived its right to object.

		Accordingly, Plaintiff is also awarded $3,495.53 in costs. Plaintiff to give notice.
3	**Eltiste vs. City of Tustin** **2026-01540573**	**Demurrer to Complaint** Defendant City of Tustin's (City) Demurrer to the Complaint is OVERRULED. A complaint is subject to dismissal on demurrer under Code of Civil Procedure section 430.10 where the court has no jurisdiction of the subject of the cause of action alleged in a complaint. The City argues the court lacks subject matter jurisdiction over Plaintiff's claims as his alleged injuries were sustained while working as a volunteer for the City's Parks and Recreation Department. Such injuries are covered by the City's workers' compensation program, which are the exclusive remedy for injuries arising out of the course and scope of employment. (Lab. Code § 3602(a); Lab. Code § 3363.5(a).) The Complaint fails to allege Plaintiff was an employee or volunteer for the City's Parks and Recreation Department. The City makes such argument without any proof that such relationship existed. A demurrer can be used only to challenge defects that appear on the face of the pleadings under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) No extrinsic evidence can be considered. A demurrer based on workers' compensation exclusivity is only proper when the complaint itself affirmatively alleges facts indicating coverage. (*Arriaga v. Cnty. of Alameda* (1995) 9 Cal.4th 1055, 1060.) Where a complaint does not affirmatively allege facts indicating workers' compensation coverage on its face, the defendant cannot succeed on a demurrer based on the exclusive remedy defense. (*Gibbs v. Am. Airlines, Inc*., (1999) 74 Cal.App.4th 1, 13.) Accordingly, the demurrer to the Complaint based on lack of subject matter jurisdiction is OVERRULED. Defendant to give notice.
4	**Hill vs. Carillo**	**Motion to Strike Portions of Complaint**

	2026-01539605	Defendant Christopher Carillo's Motion to Strike Portions of Plaintiff Robert Daniel Hill's Complaint is GRANTED. (Code Civ. Proc. §436, subd. (a); *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Plaintiff shall have 20 days to file a First Amended Complaint. Punitive damages are governed by Civil Code section 3294: "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civ. Code § 3294(a).) To state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in section 3294. (*Coll. Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) "Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*Id*. at 725.) Oppression is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).) Fraud is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code § 3294, subd. (c)(3).) In *Potter v. Firestone Tire & Rubber Co*. (1993) 6 Cal.4th 965, 1004, the California Supreme Court explained that "punitive damages sometimes may be assessed in unintentional tort actions." In *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-895, it noted that "something more than the mere commission of a tort is always required for punitive damages. There must be circumstances of aggravation or outrage, such as spite or malice, or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton." Indeed, "punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210 [internal quotation omitted].) The "conclusory characterization of defendant's conduct as intentional, willful and fraudulent is a patently insufficient statement of oppression, fraud or malice…within the meaning of

		section 3294." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) The act of willfully becoming intoxicated and operating a motor vehicle alone may support a claim for punitive damages. (*See Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896.) But a plaintiff must plead and establish that defendant's conduct "was such as to amount to a conscious disregard of the safety of and probable injury to other persons." (*See Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 87.) In *Taylor*, the court held that allegations of the defendant's operation of an automobile under the influence disclosed a conscious disregard of the probable dangerous consequences, where defendant was an alcoholic who was aware of the seriousness of his problem, of his tendency to drive while intoxicated, and of the dangerousness of his driving while in such condition. Likewise, the court in *Dawes* found that the trial court had abused its discretion in striking punitive damages claim, where the complaint alleged the defendant was driving while intoxicated in a manner where risk of injury was probable. (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 86.) Specifically, the complaint in *Dawes* alleged the intoxicated defendant zigzagged in and out of traffic in excess of 65 miles per hour in a 35-mile per hour zone, in crowded beach recreation area at 1:30 on a weekend afternoon. (*Ibid.*) The only fact alleged in the complaint is the fact that Carillo was intoxicated while operating the vehicle at the time of the accident. There are no additional facts such as those presented in *Dawes* and *Taylor* which would serve as a basis for a punitive damages award. Plaintiff has pointed to additional facts not included in the Complaint in the opposition, such as the traffic collision report. Accordingly, there is a reasonable possibility Plaintiff could adequately plead a basis for punitive damages if granted leave to amend. Moving Defendant shall provide notice.
5	**Kiani vs. Koffey** **2025-01484637**	**Motion to Seal (ROA 157)** Plaintiff Joe Kiani's Motion to Seal is GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Moving Party has made a sufficient factual showing under Cal. Rules of Court, Rule 2.550, subd. (d) to justify sealing: (1) Moving Party has shown that the records he seeks to seal consist of, or directly reference, privileged and private

		attorney-client communications, including engagement letters and billing records for legal services. (2) Moving Party has shown an overriding interest that supports sealing of records (see *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1222, fn. 46 [recognizing inter alia an overriding interest in protection of trade secrets and protection of information within the attorney-client privilege]; *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1286 [recognizing that confidential and sensitive business and financial information is ordinarily a matter appropriate for sealing].) (3) Publication of these records would prejudice Moving Party by publicly disclosing attorney-client communications, attorney work-product, and sensitive financial information. (4) Moving Party proposed a narrowly tailored means to protect the overriding interest by redacting only those portions of the memorandum that constitute attorney-client communications and attorney work product and references the substance of the same. (5) Moving Party has shown there is no less restrictive means of protecting the overriding interests identified above. The clerk is directed to file the unredacted Reply in Support of the Motion to Disqualify Attorney of Record (ROA 158) UNDER SEAL. The redacted versions of the Reply (ROA 148) shall be accessible on the public record of this proceeding. Plaintiff to give notice.
6	**Kiani vs. Masimo Corporation** **2026-01546059**	**Petition to Compel Arbitration** No tentative.
7	**Kim vs. Byun** **2026-01579317**	**Motion to Consolidate** Plaintiffs Myung Soo Kim and Sun Hee Kim's motion to consolidate this action with the Small Claims action Case No. 30-2025-01517200 is DENIED. Consolidation is not appropriate as the Small Claims action has already been to trial and is now pending appeal. (Code Civ. Proc., § 116.390, subd. (b).) The case of *Acuna v. Gunderson Chevrolet, Inc.,* (1993) 19 Cal. App. 4th 1467, is on point. The appellate court held that the superior court lacked jurisdiction to make a consolidation order. The court affirmed the trial court's dismissal of the consolidation attempt and transferred the matter back to the small claims court.

		The *Acuna* court grounded its holding in the legislative purpose of the Small Claims Act. Code of Civil Procedure section 116.120, subdivision (b) declares that the purpose of the small claims divisions is to resolve minor civil disputes expeditiously, inexpensively, and fairly. Consolidating a small claims appeal with a full superior court civil action would fundamentally undermine this purpose by subjecting a small claims matter to the procedural complexity of unlimited civil litigation. Plaintiff Myung Soo Kim to give notice.
8	**Magedman vs. STOCKX LLC** **2025-01531861**	**Motion to Compel Arbitration** Defendant StockX, LLC's motion to compel plaintiff Bryan Magedman to submit his claims to binding, contractual arbitration is GRANTED. StockX has met its initial burden showing a valid arbitration agreement between the parties that covers the instant dispute. The burden now shifts to Magedman to show why the agreement should not be enforced. Magedman has not met that burden. The court finds plaintiff is not seeking public injunctive relief in this case which may prohibit enforcement of the arbitration provision. The gravamen of the complaint points to simply a private request. Public injunctive relief is relief that benefits the general public and benefits an individual plaintiff only incidentally or as a member of the general public. *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035. In contrast, private injunctive relief primarily resolves a private dispute between the parties and rectifies individual wrongs even where a group of similarly situated persons would benefit. (*Clifford v. Quest Software Inc*., (2019) 38 Cal.App.5th 745.) This action is stayed pending completion of the binding arbitration. **The court sets an Alternative Dispute Resolution (ADR) review hearing for May 21, 2027 at 8:30 a.m. in this department.** Magedman's objections to the declaration of Stephen Winn are overruled. **Motion to Appear Pro Hac Vice is vacated. See notice filed 7/23/26 (ROA 159).** **Case Management Conference set this date is vacated.** StockX to give notice.

9	**Navarro vs. American Honda Motor Co.** **2021-01205671**	**Motion to Strike or Tax Costs** *The court admonishes all counsel that before filing motions, counsel should weigh the time and expense in bringing a motion against the issues of the proposed motion. Meaningful meet and confer efforts may resolve the issue(s) of the motion and reduce costs and attorney's fees.* Defendant American Honda Motor Co., Inc.'s motion to strike/tax costs is GRANTED IN PART, as follows. Plaintiff Osvaldo Navarro's memorandum of costs filed on 1/29/26 is hereby taxed in the total amount of $75 only, consisting of the $75 fee to "Court Appearance Professionals" for an attorney to make a special appearance at the 1/17/25 OSC hearing on behalf of plaintiff's counsel. (See Code Civ. Proc., § 1033.5, subd. (c)(5)(A); Cal. Rules of Court, rule 3.1702 [noticed motion required where court must make prevailing party determination or fix the amount of fees/determine a "reasonable" fee]; see also ROA No. 99–Costs Memo. [see att. 15 & invoice No. S-INV159415]; ROA No. 81 [1/17/25 minute order, noting appearance by attorney Eric Alizade, "specially appearing" for plaintiff's counsel].) Plaintiff may seek this fee via a duly noticed motion for attorney fees. The court finds all of the other costs at issue were reasonably incurred in the prosecution of the action, namely, to file a joint stipulation agreed to by the parties, and to seek and file notices of continuances of an OSC hearing granted by the court. (See Civ. Code, § 1794, subd. (d); see also *id*., § 1033.5, subd. (a)(1), (14).) **Order to Show Cause re: Dismissal on Settled Case continued October 9, 2026 at 8:30 a.m. in Department C44.** Defendant shall give notice.
10	**Niknafs vs. Gitibin** **2025-01506015**	**Demurrer to Amended Complaint** Defendants Kavous Gitibin and Cindy Gitibin's demurrer to plaintiff Nicholas Niknafs' Second Amended Complaint [SAC] is OVERRULED. (Code Civ. Proc., § 430.10, subds. (e)-(g).) The SAC is not uncertain (Code Civ. Proc., § 430.10, subd. (f)), as sufficient facts are alleged to place moving defendants on notice of the nature of plaintiff's claims. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 [demurrers for

		uncertainty should be "granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond"]; see also *Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135 [uncertainty demurrers strictly construed "because ambiguities can reasonably be clarified under modern rules of discovery"].) Nor does the SAC "clearly and affirmatively" show that plaintiff's claims are time-barred. (*Geneva Towers Ltd. Partnership v. City of San Francisco* (2003) 29 Cal.4th 769, 781 ["In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred"]; Code Civ. Proc., § 339, subd. (1) [two-year statute of limitations for breach of oral contract]; *Romano v. Rockwell Internat., Inc.* (1996) 14 Cal.4th 479, 488) [breach of contract cause of action accrues at time of breach]; SAC, ¶¶ 13 [oral contract for Handrail Refinishing Project formed on or about 8-15-23], 16 [plaintiff's performance took place "over the course of several weeks"], action filed 8-22-25; see also Civ. Code, § 1657 ["If no time is specified for the performance of an act required to be performed, a reasonable time is allowed ... [i]f the act is in its nature capable of being done instantly--as, for example, <u>if it consists in the payment of money only--it must be performed immediately upon the thing to be done being exactly ascertained</u>;" emphasis added; *Consolidated World Investments, Inc. v. Lido Preferred Ltd*. (1992) 9 Cal.App.4th 373, 381 ["What constitutes a 'reasonable time' for performance is a question of fact," and "depends ... on the circumstances of each case;" internal citations omitted].) The 1st cause of action for breach of contract states sufficient facts. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [breach of contract elements]; SAC, ¶¶ 12, 13, 17, 20 [oral contract for Handrail Refinishing Project], 16, 21 [plaintiff's performance], 17, 22 [nonpayment as breach], 23 [proximately caused damages].) Whether the Handrail Refinishing Project fell within the scope of repairs pursuant to the purchase agreement as moving parties contend, cannot be determined at the pleading stage, given plaintiff's allegations to the contrary. (SAC, ¶¶ 12-15 [alleging oral contract for Handrail Refinishing Project was outside the scope of the purchase agreement for the subject property]; *Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239 ["So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, we must accept as

		correct plaintiff's allegations as to the meaning of the agreement”].) The 2nd cause of action for common count - work, labor, and services rendered, states sufficient facts. (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460 [“The only essential allegations of a common count are (1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment;” citation omitted]; CACI 371 [quantum meruit elements]; SAC, ¶¶ 12, 13, 20, 25 [oral contract for plaintiff to perform services, i.e. the Handrail Refinishing Project], 16, 21, 26 [plaintiff’s performance], 17, 22 [indebtedness via nonpayment], 23, 28 [$48,500 reasonable value of services].) Moving defendants shall file an Answer to the SAC within 10 days. Plaintiff shall give notice.
11	**Vicuna vs. Frsteam by Custom Commercial** **2025-01523569**	**Demurrer to Complaint** Defendants Custom Commercial Dry Cleaners, LLC, dba FRSTeam by Custom Commercial, and FRSTeam, LLC’s demurrer to the 3rd cause of action for conversion in plaintiff Robert Vicuna’s Complaint is OVERRULED. The third cause of action states sufficient facts. (Code Civ. Proc., § 430.10, subd. (e) [demurrer for failure to state]; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240 [conversion elements]; Complaint, ¶¶ 2, 27 [plaintiff’s ownership / possession of personal property], 6-9, 38 [deprivation of property for a significant period, failure to return property, and/or destroyed property, including “multiple missing .... items” (¶ 7), and “many of the items were not delivered” or “were lost” (¶ 8)], 39 [lack of consent], 13, 40-42 [proximately caused damages]; see also *Quelimane Co., Inc. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer so long as it states a cause of action under any theory]; *Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 29 [“a plaintiff is permitted to plead inconsistent or ... alternative counts”].) Moving parties’ notice of demurrer also cites Code Civ. Proc., § 430.10, subd. (f) [uncertainty], but the moving papers do not address this ground. In any event, demurrers for uncertainty should be sustained “only if the pleading is so incomprehensible that a defendant cannot reasonably respond” (*A.J. Fistes Corp. v.*

		GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695), which is not the case here. (See also *Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135 ["We strictly construe such demurrers because ambiguities can reasonably be clarified under modern rules of discovery"].) Moving defendants shall file an Answer to the Complaint within 15 days. **Case Management Conference continued to January 15, 2027 at 8:30 a.m. in Department C44.** Plaintiff shall give notice.